

The Railways (Employment of Members of The Armed Forces) Act, 1965

Source: <https://indiankanoon.org/doc/1691761/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[1](#)

[\]](#)

[Union of India - Act](#)

[The Railways \(Employment of Members of The Armed Forces\) Act, 1965](#)

[UNION OF INDIA](#)

[India](#)

[The Railways \(Employment of Members of The Armed Forces\) Act, 1965](#)

[Act 40 of 1965](#)

[Published on 3 December 1965](#)

[Commenced on 3 December 1965](#)

[\[This is the version of this document from 3 December 1965.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Railways \(Employment of Members of The Armed Forces\) Act, 1965](#)

[ACT NO. 40 OF 1965](#)

[1311.](#)

In an emergency, occasion may arise when members of the Armed Forces have to be employed to assist the Railway Administration in manning the Railways. The personnel so employed do not, however, fall within the definition of "railway servants" under the Indian Railways Act, 1890, even while actually working on Railways. It is, therefore necessary to confer upon the members of the Armed Forces so employed the same powers, status and immunities and impose upon them the same liabilities, as are applicable to railway or specific portion or section of it may have to be assumed exclusively by the Armed Forces. During the period of such assumption the Indian Railways Act, 1890, should

not apply in respect of Railway or portion or section of the Railways so taken over. The Bill which closely follows the provisions contained in Ordinance 53 of 1942 (since repealed by Act 2 of 1948). seek to achieve the above objects. - Gazette of India 24-9-1965, Pt. II, Section 2 , Extra Page 989.

[3rd December, 1965]

An Act to make certain provisions relating to the employment of members of the Armed Forces of the Union in the working and management of railways.

BE it enacted by Parliament in the Sixteenth Year of the Republic of India as follows:-

1.

Short title and extent.

(1)

This Act may be called the Railways (Employment of Members of the Armed Forces) Act, 1965.

(2)

It extends to the whole of India.

2.

Interpretation.

Words and expressions used in this Act and defined in the Indian Railways Act, 1890 (9 of 1890), shall have the meanings respectively assigned to them in that Act.

3.

Employment of members of Armed Forces of the Union to assist a railway administration in connection with the service of a railway.

(1)

When any member of the Armed Forces of the Union is employed to assist a railway administration in connection with the service of a railway, then, whether such employment was before or is after the [commencement]

[i.e. 3-12-1965]

of this Act,-

(a)

any provision of the Indian Railways Act, 1890 (9 of 1890), or of the rules made thereunder, which confers a power, status or immunity, or imposes a duty or liability, upon a railway servant, in connection with the working, use, management and maintenance of railways, shall be construed as conferring the same power, status or immunity or imposing the same duty or liability, as the case may be, upon such member of the Armed Forces of the Union when so employed;

(b)

the employment of a member of the Armed Forces of the Union, in addition to or in the place of any railway servant, shall not affect any liability that would have attached to the railway administration had such member been a railway servant.

(2)

Nothing in sub-section (1) shall be construed as making applicable to the members of the Armed Forces of the Union employed to assist a railway administration the provisions of Chapter VIA of the Indian Railways Act, 1890 (9 of 1890), or as derogating from any provision 384. of a law regulating the governance, control and discipline of the members of the Armed Forces of the Union.

4.

Employment of members of Armed Forces of the Union to replace railway administration in working a railway.

If at any time the whole of the working, management and maintenance of a railway or of a specific, portion or section of a railway, is assumed by the Armed Forces of the Union, the Central Government may notify the fact of such assumption in the Official Gazette and thereupon, so long as such assumption continues, the Indian Railways Act, 1890 (9 of 1890), shall cease to be applicable to the Railway or the portion or section of the Railway concerned.

5.

Repeal and saving.

(1)

The Railways (Employment of Members of the Armed Forces) Ordinance, 1965 (4 of 1965) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under this Act as if this Act had commenced on the 29th day of September, 1965.

Related AI tags, queries and research notes

Translation